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Submitter Information

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[REDACTED]

General Comment

See attached file(s)

Attachments

Request for Information on the Development of an Artificial Intelligence (AI) Action Plan Comment

March 15, 2025

From:
Yasmine Spangler
Student/Freelance Artist

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who is currently working to enter the entertainment/VFX industry, and who is already well on her way to joining this industry, which provides jobs and taxable revenue to this country. While I recognize that AI can be a potent and powerful tool, I urge this administration to carefully consider the consequences to eroding copyright protections on the work that I and thousands of other artists create for the sake of developing AI tools. Without the work of artists, the growth of AI tools is limited, and AI models **will ultimately be damaged as less high-quality data is made with which to train them**. The answer to this problem is not to give AI systems unfettered access to content, but to **strengthen the rights and abilities of artists to license their work to AI systems and defend the use of their work by those not permitted to use it**.

AI systems can only be produced by first training on work made by people. The work of hundreds of thousands of other everyday American creators has been taken and fed into these AI systems, often without consent or any compensation. This is a direct attack on those who rely on that same work to support themselves and their families. Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate, and without new material, an AI model cannot create new ideas.

Copyright is an agreement between the government and those who create, giving them the power to profit on their work. What does an erosion of these rights represent? What does it mean if these rights can be handed over by a government to whomever they please for whatever purpose they want? If people do not own their creations, and everything they put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things? Moreover, without new data to train itself on, any attempt at "AI dominance" on the world's stage will be delayed, if not

self-cannibalized. There is already a crisis in model training where good-quality trainable data is being overwhelmed with AI-generated content. Getting rid of the incentives for Americans to create will only exacerbate this issue.

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.** Rather, **give creators the tools to cooperate with Big Tech on their own terms and prosecute those who use their data without permission.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Third, give American creators better powers and abilities to assert their copyright. By handing over the keys for an AI company to use American-made content without permission, **you empower global competitors just as much as you empower American-made AI solutions.** The current system in the courts around resolving copyright disputes is antiquated and overly expensive, and doesn't have any power to target foreign adversaries that use their data.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law without also regarding the rights of the people who make copyrighted content. In essence, **the answer to this tragedy of the commons is to protect the grass, not to let the cows run amok.**

Thank you for the opportunity to comment on these important issues.